

Maruti Reclaim Rubber Industry Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 15 October 2020 · WRIT - C No. 15113 of 2020 · **Writ disposed; petitioner relegated to clause 6.5 objection.**

HEADNOTE

Writ challenging an 08.08.2019 assessment order/bill of Paschimanchal Vidyut Vitran Nigam Ltd. was disposed on the licensee's statement that an objection lay under clause 6.5 of the U.P. Electricity Supply Code, 2005. The consumer was given liberty to object before the competent authority, which was to decide a timely objection by a speaking order after hearing, in accordance with law.

FACTUAL SUMMARY

M/s Maruti Reclaim Rubber Industry Pvt. Ltd. petitioned the Allahabad High Court against an assessment order dated 08.08.2019 of Paschimanchal Vidyut Vitran Nigam Ltd. On 01.10.2020 the Court asked whether any alternative remedy against that assessment had been availed or was available. After an adjournment for instructions, the licensee's counsel stated on 15.10.2020 that the petitioner could object to the bill under clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-alternative-remedy-assessment-bill

HOLDING

A writ challenging an electricity assessment order or bill may be disposed with liberty to object under clause 6.5 of the U.P. Electricity Supply Code, 2005, the competent authority being required to decide a timely objection by a speaking order after hearing, in accordance with law. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy The Court accepted the licensee's statement that clause 6.5 of the Supply Code afforded a remedy against the 08.08.2019 assessment/bill and disposed the writ with liberty to file that objection for a speaking decision after hearing. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed August 2019 assessment/bill was not examined on merits; the consumer was sent to the clause 6.5 objection process before the competent authority. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 08.08.2019 ASSESSMENT ORDER/BILL

The writ was disposed on the licensee's statement without examining the assessment. ¶ 1